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# Meridian Answer and Affirmative Defenses

Filed: April 7, 2025 District ECF No. 9 Civil Action No. SYN-NDWV-25-CV-0618

## United States District Court for the Northern District of West Virginia

Pleading designation: Meridian Silt's separate response to the Complaint.

**Asterglen Freight Software, Inc., Plaintiff,** v. **Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.**

Meridian Silt Holdings, LLC answers the Complaint. Meridian denies each allegation not expressly admitted below.

1. Meridian admits that Asterglen and Copper Kestrel entered a software pilot. Meridian was not a party to that license and denies liability for any disagreement over its construction.
2. Meridian admits that its work involved configuration associated with a proposed group of additional terminals. It denies knowingly assisting unauthorized commercial use.
3. Meridian admits receiving information about a June 3 proposed change order and June 10 load-test conditions. It understood that technical evaluation could proceed while commercial approval remained open.
4. Meridian denies causing $360,000 in injury. Asterglen's damages allegations do not separate the loss claimed against Copper from the loss claimed against Meridian.
5. Meridian admits that common evidence may concern provisioning and July communications. It denies that overlap supplies any missing element of the interference claim.

## Responses Concerning the License and Expansion

6. Meridian lacks knowledge sufficient to admit the allegations about formation and performance of the April 15, 2024 Pilot License and therefore denies them, except it admits the writing identified twelve terminals.
7. Meridian admits that Copper sent a proposal dated June 3 for twenty-nine additional terminals. Meridian understood the document was awaiting Asterglen's signature.
8. Meridian admits Asterglen issued written load-test conditions on June 10. Those conditions described monitoring and technical restrictions but also contemplated use of provisioned identifiers for evaluation.
9. Meridian denies that it had authority to amend the license, and it never represented to Asterglen that its separate engagement with Copper would do so.
10. Meridian admits that forty-one identifiers existed by July 1, consisting of twelve tied to the signed pilot and twenty-nine tied to the proposed expansion. Meridian denies it created those identifiers; Asterglen controlled provisioning.
11. Meridian denies that the number of available credentials established how each environment was used. Configuration records distinguish mapping, validation, traffic simulation, and live routing.
12. Meridian admits the parties dispute the meaning of statements made July 8. It denies treating that discussion as unlimited authorization and states that its team continued bounded integration work subject to technical supervision.
13. Meridian lacks knowledge concerning whether Asterglen complied with Section 9.2 and therefore denies any allegation directed to that bilateral obligation.

# Meridian's June 14 Statement of Work

14. Meridian admits entering the Integration SOW and Milestone Table with Copper Kestrel on June 14, 2024. A copy is attached to this Answer as District ECF No. 9-1.
15. The statement of work assigned Meridian tasks involving data mapping, connector configuration, test execution, issue reporting, and transition support. It did not grant Meridian a BeaconRoute license.
16. Copper was responsible for obtaining necessary permissions from software providers and for directing which terminal environments were approved for a given stage. Meridian was responsible for following supplied access controls and reporting exceptions.
17. The milestone table separated preparation, controlled load testing, review, and any later operational transition. Meridian did not have unilateral power to advance a terminal from one stage to another.
18. Meridian received credentials that Asterglen had provisioned and directions communicated through Copper. The visible availability of those credentials was consistent with a sanctioned technical test, although Meridian understood that final commercial expansion remained unsigned.
19. Meridian did not induce Copper to reject a signed pricing term, evade a credential control, or conceal terminal activity. It recorded work performed and maintained status information for the participants.
20. Asterglen's allegation that Meridian acted with an improper purpose is denied. Meridian's purpose was to perform compensated integration services under its own agreement, not to disrupt the Pilot License.

# Responses Concerning July 8–25

21. Meridian admits joining the July 8 call. Meridian's contemporaneous note reflects permission to continue a monitored test, not approval of permanent production rights.
22. Meridian admits no signed change order followed. Meridian expected Copper and Asterglen to resolve licensing terms while the limited evaluation was assessed.
23. Meridian lacks knowledge of the complete method used in Asterglen's July 18 audit. It admits the report counted forty-one identifiers but denies that every recorded event was operational traffic.
24. Meridian learned on July 22 that Asterglen had sent immediate termination and a $480,000 demand to Copper. Meridian was not the addressee of that contract demand.
25. After notice, Meridian did not add a terminal, expand permissions, or initiate a new deployment. Through July 25 it collected status, preserved configuration information, assisted with shutdown sequencing, and communicated existing conditions.
26. Meridian denies that this continuation interfered with Asterglen's contract. Immediate abandonment would have impaired the parties' ability to identify active environments and reduce the disputed configuration safely.
27. Meridian admits Copper stated that a return to twelve active terminals was feasible within three business days. Meridian was prepared to support that plan if the necessary access remained available.
28. Meridian denies causing the contract termination, which Asterglen elected without a cure interval. It further denies that its conduct independently caused Asterglen $360,000 in loss.

# Affirmative Defenses

Meridian asserts the following defenses without assuming Asterglen's burden:

First, the Complaint does not plead facts showing intentional and improper interference, because Meridian performed ordinary integration work under a valid statement of work and within permissions it reasonably understood had been supplied.

Second, Asterglen consented to or authorized the technical evaluation by provisioning the twenty-nine additional identifiers, issuing load-test directions, monitoring activity, and participating in the July 8 discussion.

Third, Meridian acted to protect legitimate interests of its customer and to perform contractual duties. Its conduct was justified and privileged to the extent shown by the evidence.

Fourth, any injury was caused by Asterglen's own immediate termination, Copper's independent decisions, or other acts not attributable to Meridian.

Fifth, Asterglen failed to mitigate when it declined a proposed three-business-day reduction and instead denied any cure period.

Sixth, the $360,000 request is speculative and overlaps the $480,000 contract claim. Asterglen may not recover the same loss twice.

Seventh, waiver, estoppel, intervening cause, and comparative fault apply to the extent recognized and supported after discovery. Meridian reserves the right to amend these defenses under the governing rules and case schedule.

# Requested Relief and Jury Demand

Meridian asks the Court to enter judgment in its favor on Count II, dismiss the interference claim with prejudice, and award allowable costs and any other proper relief. If liability is found, Meridian requests allocation according to causation and a prohibition against duplicative recovery for harm also attributed to Copper Kestrel.

Meridian demands a jury trial on all issues triable by jury. The factfinder should consider the distinction between a provisioned identifier and an active production terminal; the allocation of responsibility in the June 14 statement of work; the written conditions governing technical load activity; and the participants' differing accounts of the July 8 conversation. The factfinder should also determine what Meridian actually did after July 22, rather than infer new deployment from the fact that orderly status work continued through July 25.

Meridian's attachment, District ECF No. 9-1, is the June 14 Integration SOW and Milestone Table. Meridian relies on its terms without asserting that the document modified the April 15 Pilot License. No response in this Answer should be construed as an admission concerning damages, enforceability between the other parties, or Asterglen's compliance with its own notice obligations.

Respectfully submitted on April 7, 2025.

Counsel for Meridian Silt Holdings, LLC Authorized counsel designation